

Any proposed or potential/completed activities that require Greenbelt approval. If yes, please explain.

N/A

Did you see any features, activities, or management practices you want to ask about, or discuss with the owner, including possible violations? If yes, please explain.

No

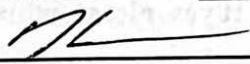
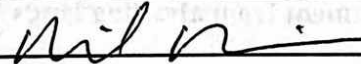
Other Observations:

Based on your observations, in your best judgment, are the terms of the easement being met?

- ☒ Ok, no violation of restriction terms observed.
- ☐ Pending, unsure due to the need for additional information or evaluation.
- ☐ No, some activities observed which are believed to be in violation of the restriction.

Photographs are attached to written report. How many photographs were taken? 4

MONITOR NAME & AFFILIATION: Kate Walton & David Rimmer, Essex County Greenbelt

SIGNATURE:  

DATE: 11/13/07

**Affidavit of Preparer of Monitoring Report
Perkins Conservation Restriction**

The undersigned, hereby certifies:

1) That he/she prepared the accompanying monitoring report dated 11/1/07 pertaining to the above-described Property protected under a Conservation Restriction dated 12/28/2001 and recorded at the Southern Essex County Registry in Book 18118, Page 492, and 2) that based on all the information cited in said Report, that said Report is an accurate representation of the Property and its conditions as of the date of said Report.

The undersigned further states and affirms 1) that the condition of the Property documented in said Monitoring Report does not necessarily represent the condition of the Property allowed or required by the Conservation Restriction, and 2) that Essex County Greenbelt Association (ECGA) does NOT in any manner waive any rights of the ECGA, either at law or in equity, to enforce the provisions of said Conservation Restriction.

Signed and sealed under the pains and penalties of perjury

this 13 day of November, 2007

By: _____

Kate Walton, Assistant Director of Land Stewardship/GIS Manager

Commonwealth of Massachusetts

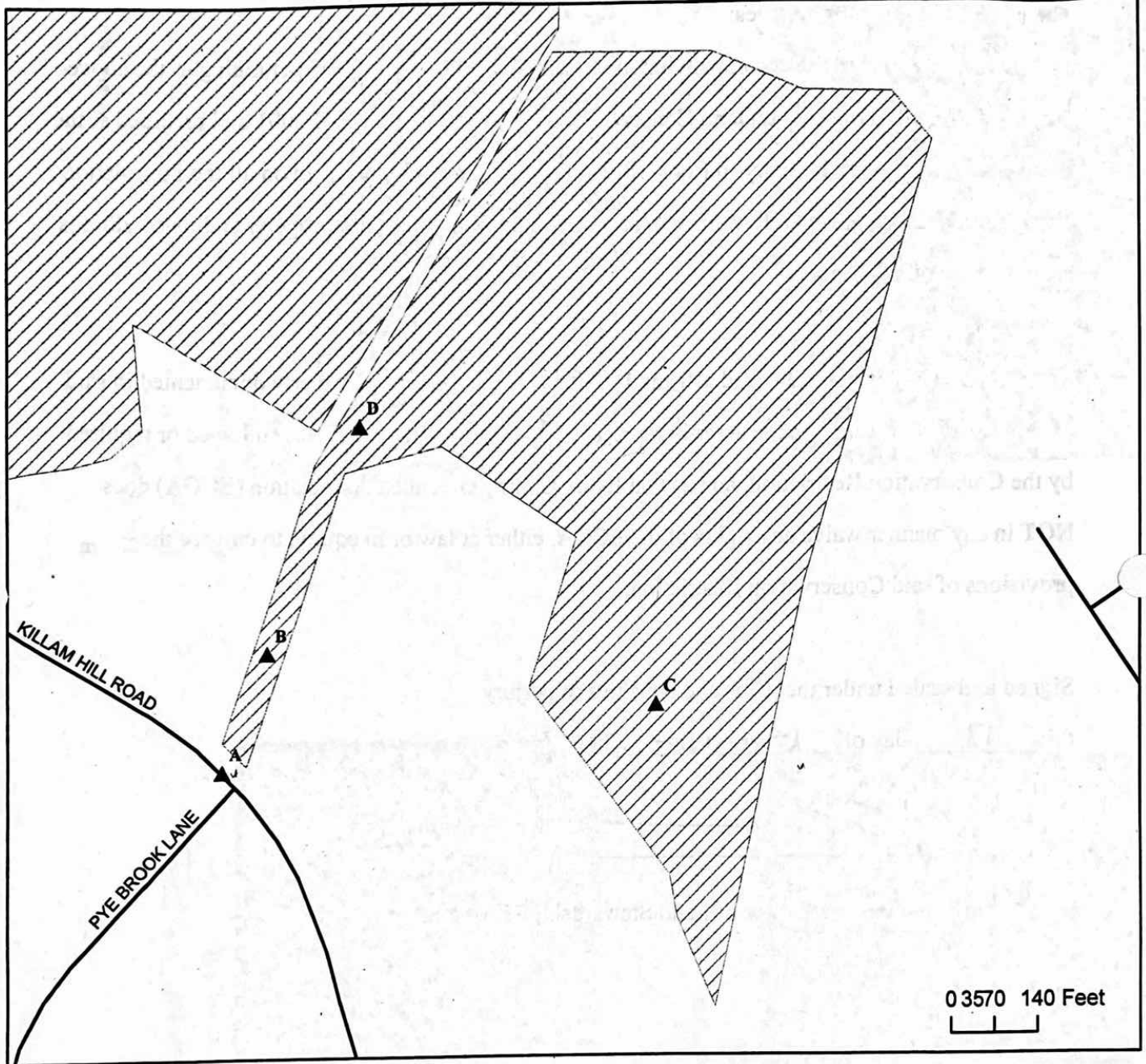
On this 13 day of November, 2007, before me, the undersigned notary public, personally appeared the above-named Kate Walton (name of document signer), proved to me through satisfactory evidence of identification, which were personal knowledge with identity, to be the person whose name is signed on the preceding or attached document, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

Becky P. Dean (official signature and seal of notary)
My commission expires February 1st, 2013



BECKY P. DEAN
NOTARY PUBLIC
COMMONWEALTH of MASSACHUSETTS
MY COMMISSION EXPIRES
FEBRUARY 01, 2013

BOX-M Perkins Conservation Restriction Baseline Photo Key 17.78 Acres



Legend

Photo Points

▲ BOX-M

▨ Greenbelt CRs

— Roads



Map produced by Essex County Greenbelt Association.
Source data obtained from survey plans and Global Positioning Systems (GPS). Boundary lines, photo points and all other property attributes are approximate.

November 1, 2007



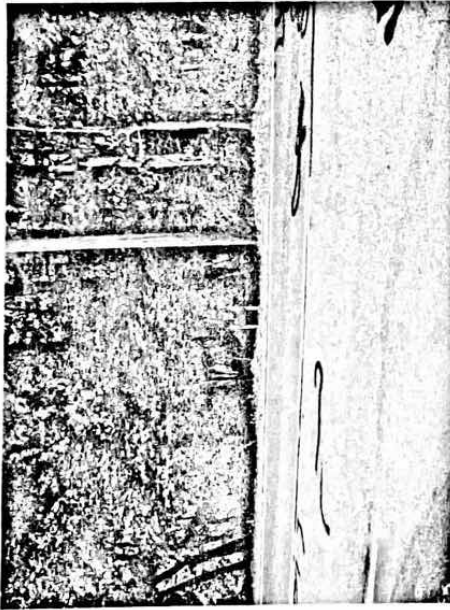
BOX-M
Perkins
11-1-07
Photos taken by David Rimmer

A

11-1-07-01C.jpg

Latitude: 42.67402254, Longitude: -70.96805804

Looking northeast, from street into CR.



C

11-1-07-03C.jpg

Latitude: 42.67429255, Longitude: -70.96539805

Looking northeast, into CR.



B

11-1-07-02C.jpg

Latitude: 42.67454869, Longitude: -70.96778178

Looking northeast, along trail into CR.

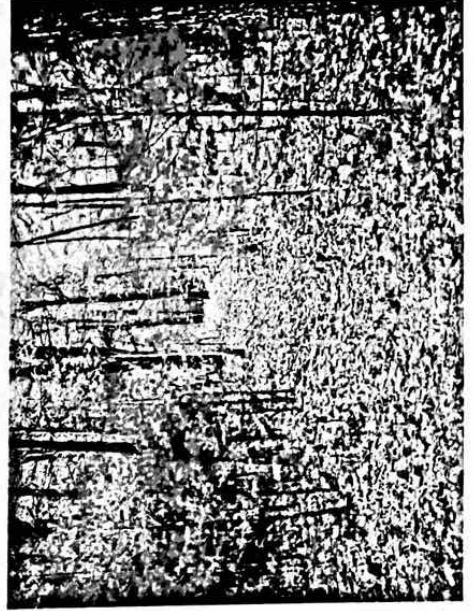


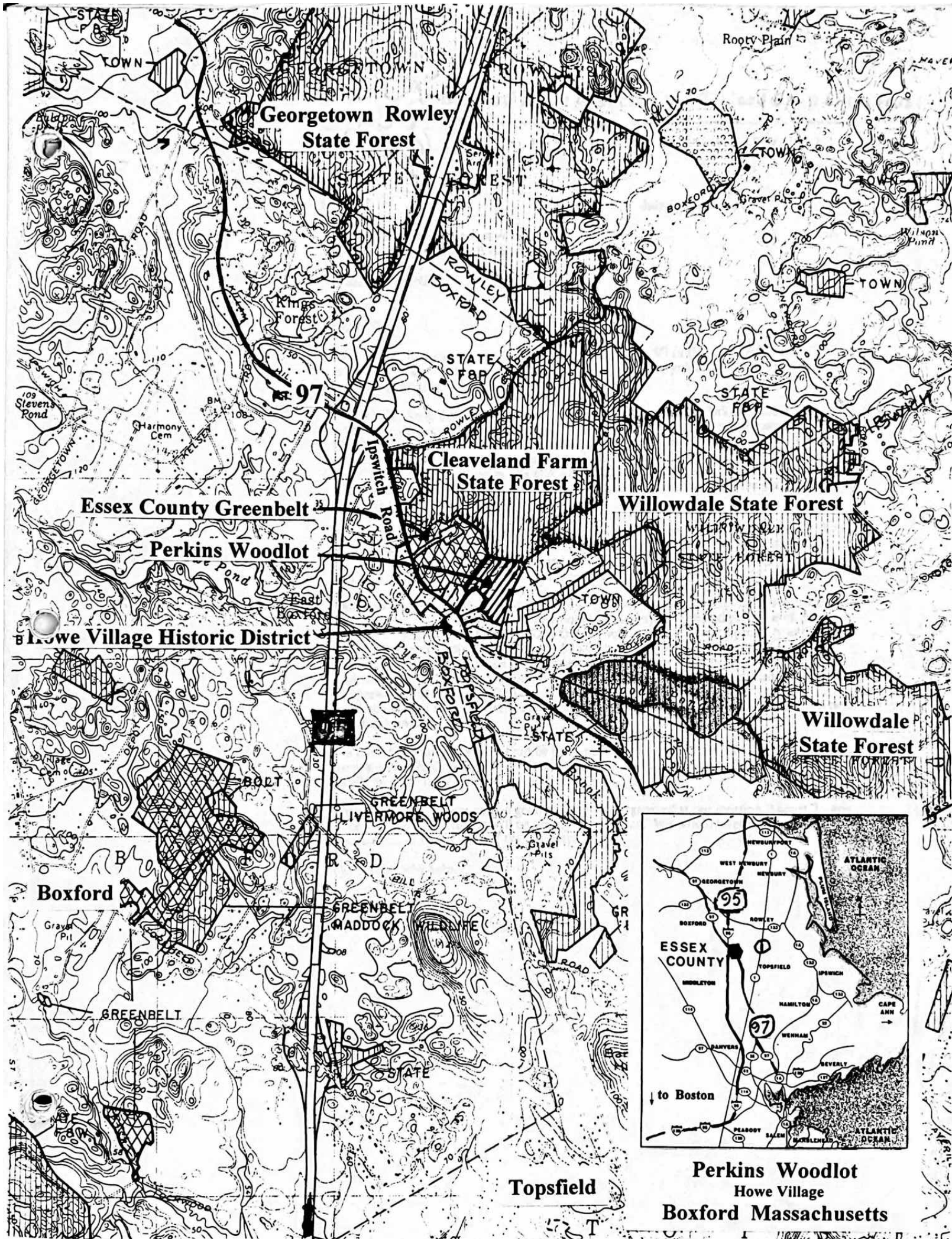
D

11-1-07-04C.jpg

Latitude: 42.67554885, Longitude: -70.96719949

Looking northeast, into CR.





BTA/BOLT



Boxford Trails Association / Boxford Open Land Trust

Post Office Box 95, Boxford, MA 01921 • (978) 887-7031

July 6, 2000

Mr. Edward Becker, Executive Director
Essex County Greenbelt Association
82 Eastern Ave.
Essex Ma. 01929

Dear Ed

I am writing in regard to the Perkins property on Route 97 in Boxford. After our conversation last week I decided it would be better to give you all the details and our proposal in writing.

On June 22, Judy Carr and Joe Perkins who are trustees for the Perkins Family Trust, offered their 17 acre parcel that abuts Cleaveland Farms State Forest and Josephine Murray's property to BTA BOLT at a bargain sale price of \$100,000. The adjoining antique house and 5 acres have been offered to the 18 Perkins grandchildren for \$160,000 - the offer will stand for 2 years. As you will recall the entire package had been offered to BTA/BOLT and/ or Greenbelt a while back for \$250,000 but matters were put on hold with the death of Mrs. Perkins.

BTA/BOLT has decided to undertake the purchase of the property without involving the Town or State. We feel that this is an incredibly generous offer from a very devoted, Boxford open space oriented family and would like to show our gratitude by securing the funds for the purchase privately. We also feel that this is a project within our capabilities.

That said, we also feel that the Perkins Property is very relevant to ECGB and know of your interest from the earlier meeting. We would like to propose a shared purchase of the property with ECGB contributing \$25,000 and holding the CR on the property and BTA/BOLT contributing the remaining \$75,000 and owning the property. We will contribute at least \$25,000 and raise the rest through private contributions, grants and an additional BTA/BOLT contribution if necessary. BTA/BOLT has committed to paying for an appraisal of the property for tax purposes. Justifying the asking price is certainly not a problem - even if there was only one building lot, the parcel would be worth more than twice the asking price.

We think this joint purchase would be great publicity - especially in increased membership for you in Boxford. We would happily do all we could to publicize the joint venture locally and will do all of the legal and grunt work.

We are planning to gear up and get our campaign organized at our meeting August 7 - any word from you prior to that will be greatly appreciated. We would be pleased to make a presentation or lead a walk of the property.

Thanks for your help.

Sincerely,

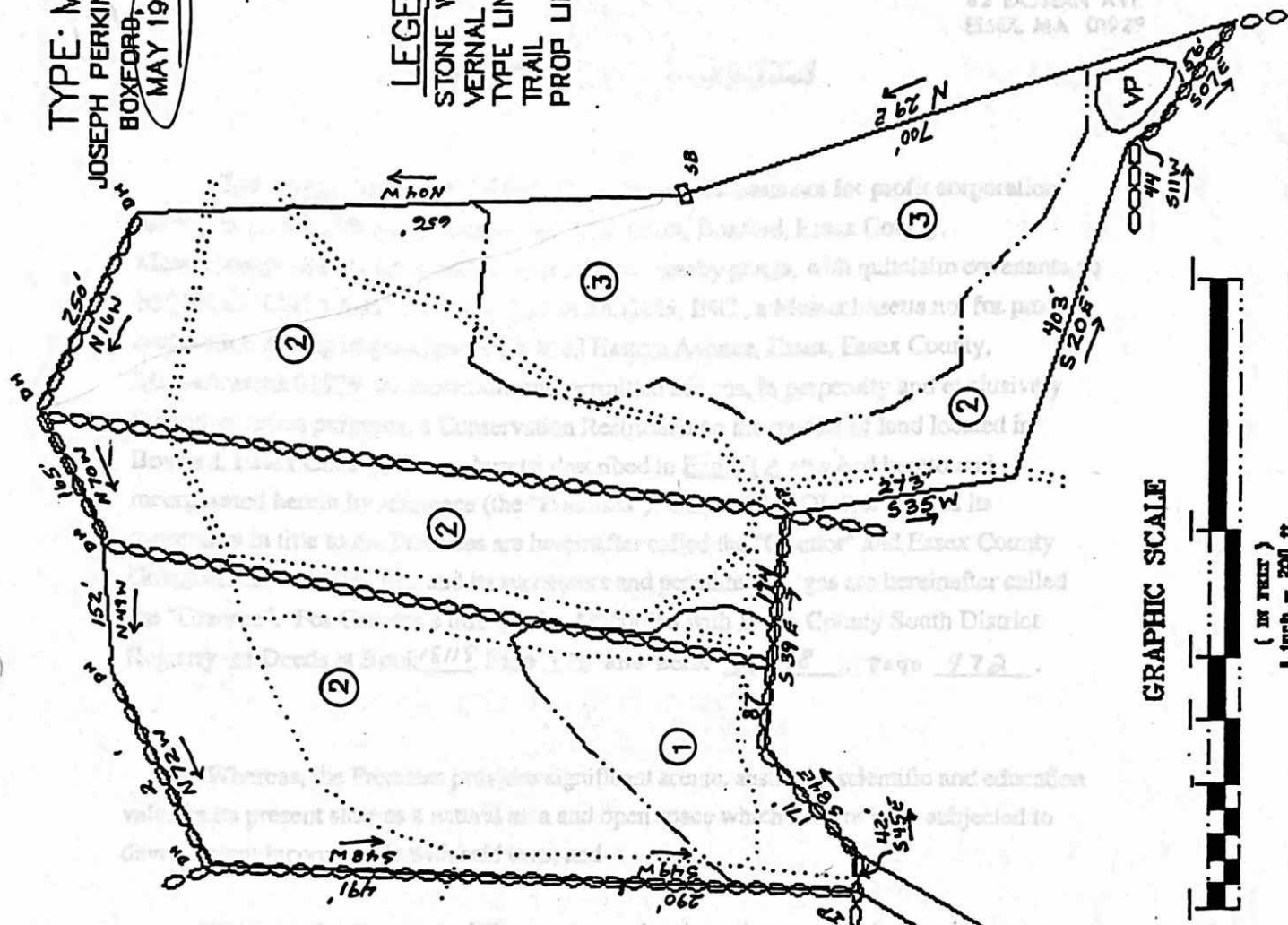
Judy Gore President BTA/BOLT

TYPE MAP

JOSEPH PERKINS TRUST
BOXFORD, M.A.
MAY 1995

LEGEND

STONE WALL ○○○○
VERNAL POOL (VP)
TYPE LINE - - - -
TRAIL
PROP LINE ————



GRAPHIC SCALE



(IN FEET)
1 inch = 200 ft

17.78 Acres

PREPARED BY:
PHILIP S. WILSON
NEW ENGLAND FORESTRY CO.

THIS MAP WAS COMPILED FROM
TAX MAPS AND BOUNDARY SURVEY
IT IS FOR CHAP 61 PURPOSES ONLY

RT 97
IPSWICH RD.

PYE BROOK
LANE



2001122800576 Bk:18118 Pg:492

12/28/2001 13:18:00 OTHER Pg 1/13

ESSEX COUNTY GREENBELT ASSOC.
82 EASTERN AVE
ESSEX, MA 01929

CONSERVATION RESTRICTION

The undersigned, BTA/BOLT, INC., a Massachusetts not for profit corporation having its principal place of business at 7 Elm Street, Boxford, Essex County, Massachusetts 01921 for nominal consideration, hereby grants, with quitclaim covenants, to ESSEX COUNTY GREENBELT ASSOCIATION, INC., a Massachusetts not for profit corporation having its principal office at 82 Eastern Avenue, Essex, Essex County, Massachusetts 01929, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on the parcels of land located in Boxford, Essex County, Massachusetts described in Exhibit A attached hereto and incorporated herein by reference (the "Premises"). Said BTA/BOLT, INC. and its successors in title to the Premises are hereinafter called the "Grantor" and Essex County Greenbelt Association, Inc. and its successors and permitted assigns are hereinafter called the "Grantee". For Grantor's title see deed recorded with Essex County South District Registry of Deeds at Book 18118, Page 470, and Book 18118, Page 472.

Whereas, the Premises provides significant scenic, aesthetic, scientific and education value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses; and

Whereas, the Grantor and Grantee recognize the uniqueness of the Premises as a Massachusetts landscape embodying the special character of the region in which the Premises is located and have the common purpose of conserving the natural values of the Premises for this generation and future generations; and

Whereas, the Premises is adjacent to Cleaveland Farms State Forest, which is owned and managed by the Massachusetts Department of Environmental Management; and

Whereas, the Premises is adjacent to a perpetual conservation restriction held by the Grantee; and

Whereas, the Premises contains an existing trail network which is linked to a regional trail system;

Therefore, in order to preserve the Premises in perpetuity in its present natural, scenic, and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within the meaning of Chapter 184, Section 31 et. seq. of the General Laws of Massachusetts, as amended. The terms of this Conservation Restriction are as follows:

(g) Use of the Premises except for forestry or outdoor recreational

1. Prohibited Activities. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses on, over or under the Premises:

(a) Activities detrimental to drainage, flood control, water or soil conservation,

(a) Construction or placing of any building, tennis court, landing strip, mobile home, swimming pool, recreational field, septic system, road, sign, fence, billboard or other advertising display, utilities, conduits, poles, antennas, towers, windmills, solar panels or other temporary or permanent structures or facilities on, over or under the ground;

(b) Dumping or placing of soil, grass clippings, compost, yard debris or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;

(c) Cutting, removal or destruction of trees, grasses, shrubs or other vegetation;

(d) Mining, excavating, dredging or removal of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction;

(e) Any commercial or industrial use or any institutional use inconsistent with the purposes of this Conservation Restriction;

- (f) Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties and except for cars, trucks and farm vehicles used for purposes permitted by this Conservation Restriction;
- (g) Use of the Premises except for forestry or outdoor recreational purposes or other purposes which permit the Premises to remain predominantly in its natural condition;
- (h) Activities detrimental to drainage, flood control, water or soil conservation, water quality, or erosion control;
- (i) Any other use of the Premises or activity which would impair the conservation values unless such use or activity is necessary and desirable for the protection of the conservation values that are subject to this Conservation Restriction;
- (j) Conveyance of a part or portion of the Premises alone, or division or subdivision of the Premises (as compared to conveyance of the Premises in its entirety which shall be permitted, subject to the provisions of paragraphs 8 and 10 hereof) without the prior written approval of the Grantee.

2. Reserved Rights. Notwithstanding anything contained in paragraph 1, the Grantor reserves the right to conduct or permit the following activities on the Premises :

- (a) Any activities designed to enhance the ecological or natural historical value of the Premises or to enhance the awareness of such values, including but not limited to the creation of dirt or grass trails, boardwalks and the placing of informative signs and benches, including suitable signs identifying Grantor as the owner of the Premises.

3. Affirmative Covenants of the Grantor. The Grantor shall pay before delinquency all taxes, assessments, fees and charges levied on or assessed against the Premises by competent authority (collectively "taxes"), and shall furnish the Grantee with satisfactory evidence of payment upon request.

4. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Premises following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Premises, determining compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. The Grantee shall have the right, but not the obligation, at its sole expense, to perform any act required to preserve, conserve or promote the natural habitat of wildlife or plants located on the Premises. The Grantee shall have the right to erect and from time to time replace, at appropriate locations near the boundaries of the Premises, suitable signs identifying the Grantee as the holder of this Conservation Restriction.

5. Access by the Public. The Grantor and the Grantee agree that the general public may pass and repass on foot, skis, horseback or other non-motorized means over the Premises. Use of the Premises by the general public shall be subject to whatever schedule, rules and regulations the Grantor and Grantee shall determine are appropriate to protect public safety and the natural and scenic values of the Premises. To the extent permitted by law, the Grantor and the Grantee hereby expressly disclaim any duty to maintain the Premises or warn persons who may enter upon the same. Pursuant to M.G.L. c. 21, s. 17c, the Grantor is not liable to any member of the public who uses the Premises for injuries to person or property sustained by such person while on the Premises in the absence of willful, wanton, or reckless conduct by the Grantor.

6. Legal Remedies of the Grantee. The rights hereby granted shall include the right to take any and all actions with respect to the Premises as may be necessary or appropriate, with or without order of court, to remedy, abate or otherwise enforce any violations hereof, as well as the right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Premises to its condition at the time of this grant (it being agreed that the Grantee may have no adequate remedy at law), and shall be in

addition to, and not in limitation of, any other rights and remedies available to the Grantee. The Grantor and the successors and assigns of the Grantor covenant and agree to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Premises. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

7. Assignment by the Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code provided that such assignee shall also be an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes.

8. Subsequent Transfers. The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Premises, including without limitation, a leasehold interest.

9. Representations of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified

Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

10. Required Notifications of Transfers. The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a lease). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction.

11. Notice and Approval With Respect to the Grantor's Activities. Whenever notice to or approval by the Grantee is required under the provisions of paragraphs 1 or 2, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefor.

12. Proceeds from Extinguishment; Eminent Domain. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise for purposes of this paragraph to a property right, immediately vested in the Grantee, with a fair market value determined by multiplying the current fair market value of the Premises unencumbered by this Conservation Restriction (minus any increase in value attributable to improvements made after the date of this grant) by the ratio of the value of this Conservation Restriction at the time of this grant to the value of the Premises, without deduction for the value of this Conservation Restriction, at the time of this grant. Such proportionate value of the Grantee's property right shall remain constant. If any change in conditions ever gives rise to extinguishment or other release of the Conservation Restriction under applicable law, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to a portion of the proceeds equal to such proportionate value, subject however, to any applicable law which expressly provides for a different disposition of proceeds.

Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth therein.

13. Binding Effect; Interpretation. The burdens of this Conservation Restriction shall be deemed to run with the Premises, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Premises, and any person holding any interest therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Premises. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; and the Grantor on behalf of themselves and their successors and assigns appoint the Grantee their attorney-in-fact to execute, acknowledge and deliver any such instruments on their behalf. Without limiting the foregoing, the Grantor and their successors and assigns agree themselves to execute any such instrument upon request.

14. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the Registry of Deeds.

15. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Premises terminate upon transfer of that party's interest, except that liability for acts or omissions occurring prior to transfer, and liability for the transfer itself if the transfer is in violation of this Conservation Restriction, shall survive the transfer.

estoppel certificate, which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

17. Miscellaneous. Approval of this Conservation Restriction pursuant to M.G.L. Chapter 184, Section 32 by any municipal officials and by the Secretary of Environmental Affairs is not to be construed as representing the existence or non-existence of any pre-existing rights of the public, if any, in and to the Premises, and any such pre-existing rights of the public, if any, are not affected by the granting of this Conservation Restriction.

IN WITNESS WHEREOF, the said BTA/BOLT, INC ^{has} ~~have~~ hereunto set ^{its} ~~their~~ hands and seals this 28th day of December, 2001.

BTA/BOLT, INC.

BTA/BOLT, INC.

George A. Horner

By: George A. Horner
Its: Treasurer

Judith A. Gore

By: Judith A. Gore
Its: President

COMMONWEALTH OF MASSACHUSETTS

Essex, SS.

December 28, 2001

Then personally appeared before me the above-named George A. Horner & Judith A. Gore and acknowledged the foregoing instrument to be their free act and deed.

PETER E. BERNARDIN
NOTARY PUBLIC
MY COMMISSION EXPIRES AUGUST 22, 2008

Peter Bernardin

Notary Public
My Commission Expires:

Essex County Greenbelt Association, Inc. hereby accepts this Conservation
Restriction and agrees to be bound by its terms.

We, the undersigned Board of Selectmen of the Town of Bedford, Massachusetts,
hereby certify that at a meeting duly held on May 18, 2001 the Selectmen voted to
approve the foregoing Conservation Restriction. Essex County Greenbelt Association, Inc.
Inc. for the preservation of the natural resources of said Town pursuant to Massachusetts
General Laws Chapter 184, Section 32.

By: Arthur C. Hodges
hereunto duly authorized

COMMONWEALTH OF MASSACHUSETTS

Suffolk, ss.

May 18, 2001

Then personally appeared before me the above-named Arthur C. Hodges
and acknowledged the foregoing instrument to be their free act and deed.

William M. Lerch
Notary Public
My Commission Expires: 12-14-01

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on June 18, 2001 the Selectmen voted to approve the foregoing Conservation Restriction to the Essex County Greenbelt Association, Inc. for the preservation of the natural resources of said Town pursuant to Massachusetts General Laws Chapter 184, Section 32.

Date June 23, 2001

Neil D. Plamely
L. C. Was
Mr. B. Galt
Ch. H.
Barbara J. Jones

APPROVAL BY SECRETARY

The following consists of a part of of land, comprised of 17.78 acres more or less, shown as "Lot A" on the plan entitled "Plan of Land" in Ipswich, Topsfield and Bedford.

The undersigned Secretary of the Executive Office of Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to the Essex County Greenbelt Association, Inc. has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

"Easement for Future Right of Way" on the Plan.

Date: June 23, 2001

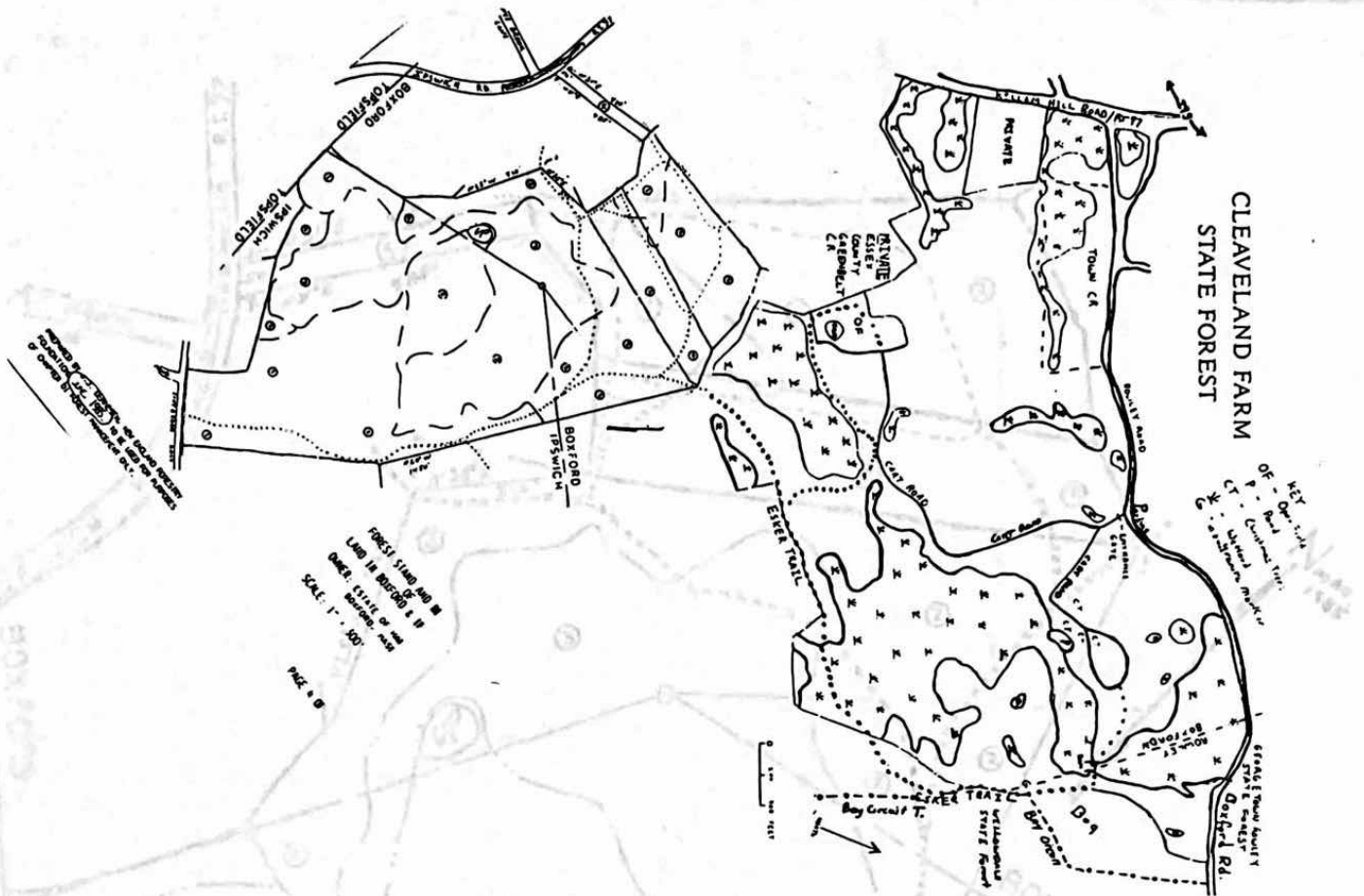


Bob Durand, Secretary, Executive Office of
Environmental Affairs

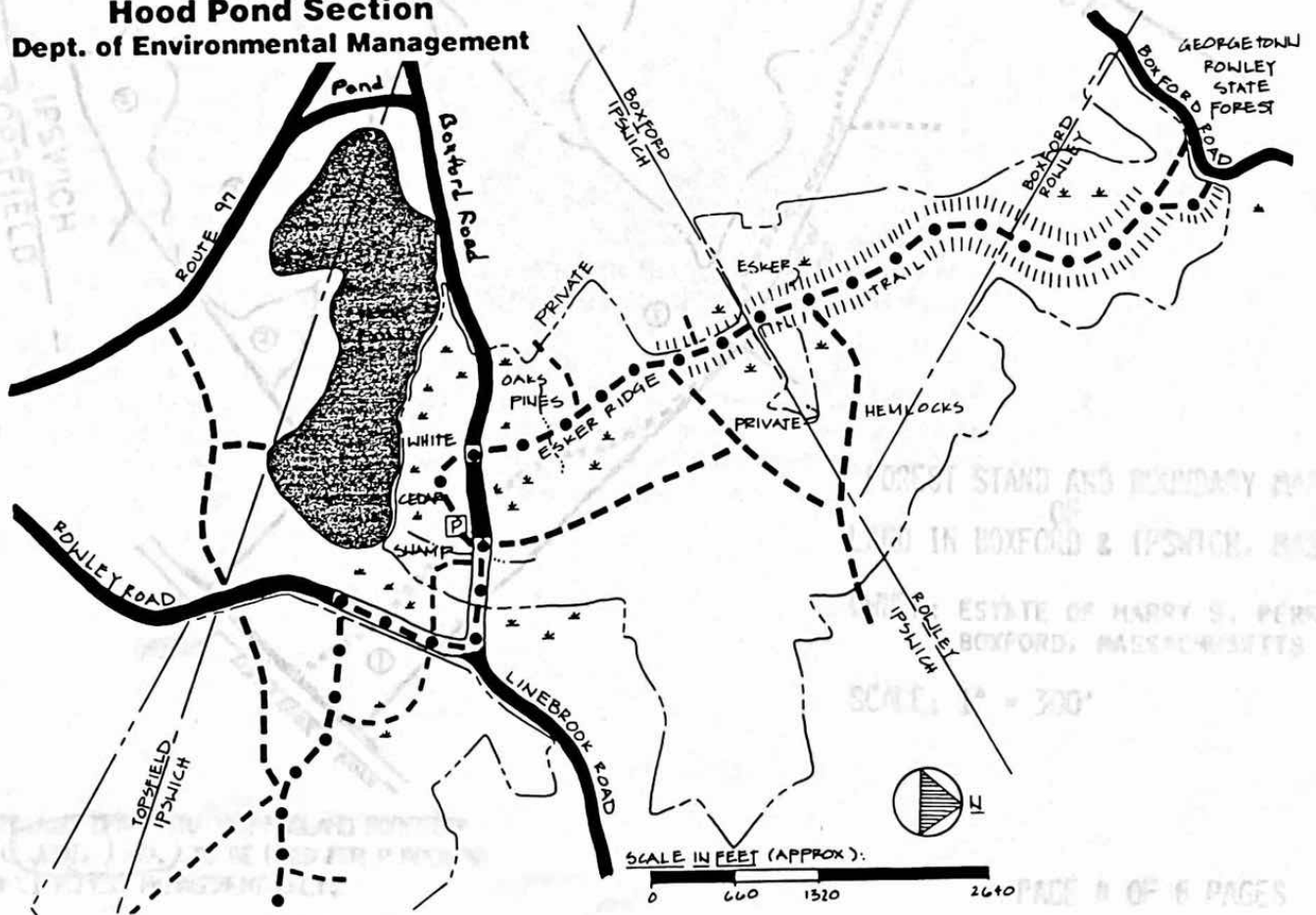
EXHIBIT A

The Premises consists of a parcel of land, comprised of 17.78 acres more or less, shown as "Lot A" on the plan entitled "Plan of Land" in Ipswich, Topsfield and Boxford, Massachusetts, prepared for Heirs of the Estate of Harry S. Perkins, dated July 28, 1987, revised February 23, 1988, recorded in the Essex South District Registry of Deeds at Plan Book 240, Page 3 (the "Plan"), together with all the right, title and interest the Grantors may hold in the parcel of land, comprised of 26,275 square feet more or less, shown as "Easement for Future Right of Way" on the Plan.

Willowdale State Forest
Wood Pond Section
Dept. of Environmental Management



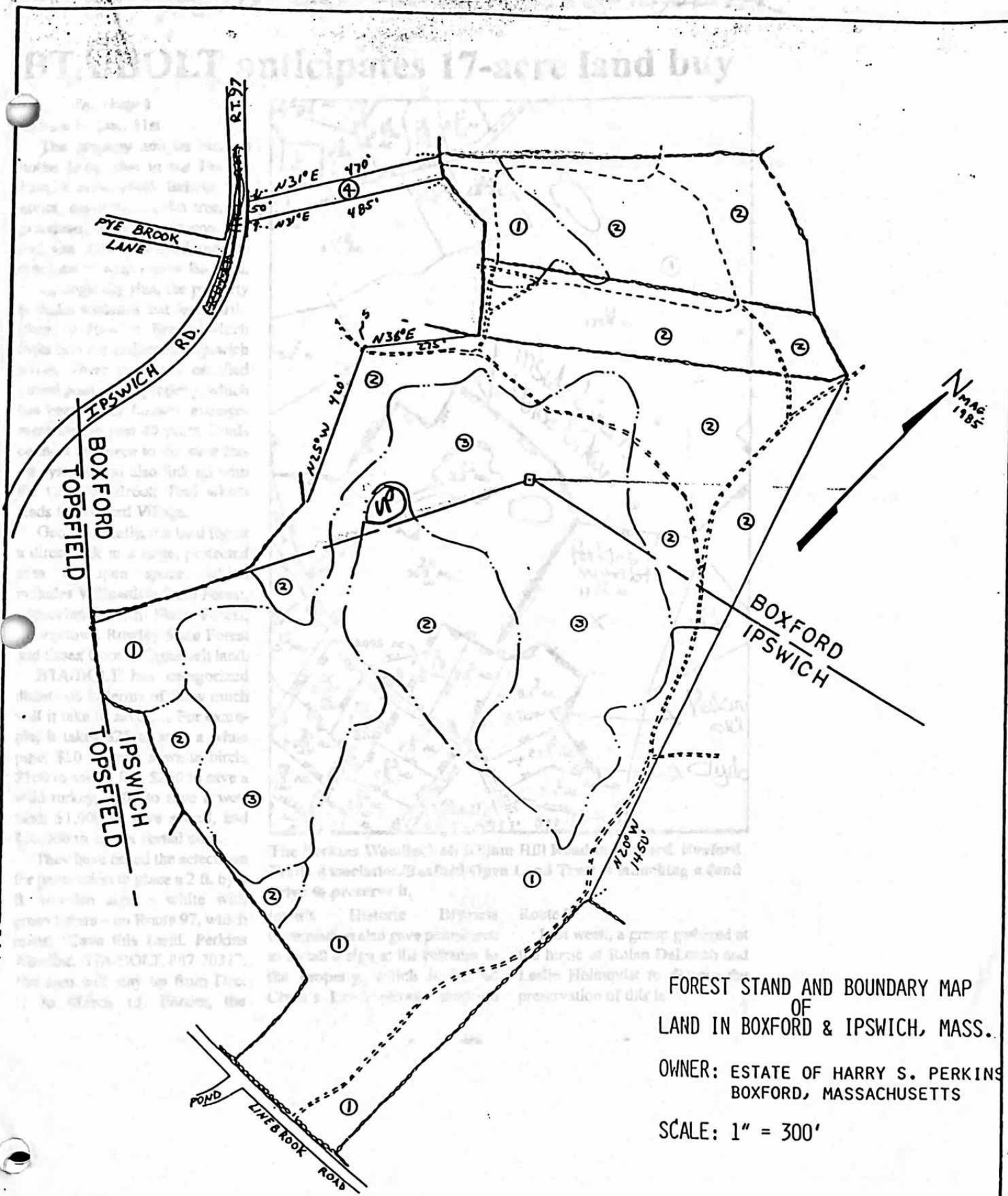
**Willowdale State Forest
Hood Pond Section
Dept. of Environmental Management**



SCALE IN FEET (APPROX.):

0 660 1320 2640





FOREST STAND AND BOUNDARY MAP
OF
LAND IN BOXFORD & IPSWICH, MASS.
OWNER: ESTATE OF HARRY S. PERKINS
BOXFORD, MASSACHUSETTS
SCALE: 1" = 300'

The Perkins Woodlot



Would like to help you preserve
this land in your neighborhood

BTA/BOLT

The Board of BTA/BOLT
invites you to
a neighborhood meeting
to discuss the preservation
of the Perkins Woodlot.

The Perkins Woodlot
consists of 17 acres
behind the Perkins-Carr homestead
at 7 & 9 Ipswich Road on Route 97
(behind Clyde's Lawnmower Service)

Members of the Perkins family
will be there.

Boxford Trails Association
Boxford Open Land Trust



BTA/BOLT

Who: All neighbors

What: Informational meeting

Why: to discuss conservation
of a large land parcel
important to your neighborhood

Where: at the home of
Rolan DeLoach & Leslie Holmquist
5 Ipswich Road (Route 97)
Howe Village Historic District
Boxford

When: Tuesday, December 5, 2000
7:30 pm

light refreshments will be served

Please RSVP - 887-7031 - BTA/BOLT Office



Division of Fisheries & Wildlife

Wayne F. MacCallum, *Director*

February 29, 2000

Judy Carr
7 Ipswich Road
Boxford, MA 01921

Dear Ms. Carr,

I am writing to notify you of the official "certification" by the Massachusetts Natural Heritage and Endangered Species Program of a vernal pool which has been documented to this office. The Town Assessor's map submitted to us indicates that Certified Vernal Pool number 1962 is located on your property.

Vernal pools are small, ephemeral wetlands which often dry up for part of the year, and provide critical breeding habitat for a number of amphibians found in Massachusetts. Some of the frogs and salamanders that use vernal pools breed exclusively in these areas. Enclosed is a fact sheet on vernal pools for your information.

The certified status of this vernal pool potentially affords it protection from adverse impacts under the following regulations:

1. Massachusetts Wetlands Protection Act Regulations (310 CMR 10.00); within wetland resource areas, protectable vernal pool habitat includes the pool itself and up to 100 feet beyond the pool's margin.
2. Massachusetts Surface Water Quality Standards (314 CMR 4.00); discharges of dredge or fill material are strictly prohibited within the boundaries of certified vernal pools.
3. Title 5 (Subsurface Sewage Disposal) Regulations (30 CMR 15.00);
4. The Massachusetts Forest Cutting Practices Act Regulations (304 CMR 11.00).

This certification has been recorded with both your local Conservation Commission and the Massachusetts Department of Environmental Protection's regional office. Please contact Wayne Lozzi at the DEP Northeast Regional Office with all regulatory questions pertaining to this pool.

Sincerely,

A handwritten signature in cursive script that reads "Amy E. Maher".

Amy E. Maher
Wetlands Environmental Review Assistant

cc: Boxford Conservation Commission
DEP Northeast Regional Office
file



Natural Heritage & Endangered Species Program

Route 135, Westborough, MA 01581 Tel: (508) 792-7270 x 200 Fax: (508) 792-7275
An Agency of the Department of Fisheries, Wildlife & Environmental Law Enforcement
<http://www.state.ma.us/dfwele>



Division of Fisheries & Wildlife

Wayne F. MacCallum, *Director*

VERNAL POOL CERTIFICATION FORM

Certified Vernal Pool: 1962

Date Certified: 2-29-2000

Town: BOXFORD

USGS Topographic Map Name: GEORGETOWN

Directions: AT ROUTE 97, TAKE IPSWICH ROAD TO #7 IPSWICH ROAD. FOLLOW TRAIL
BEHIND WORKSHOP BARN ON NORTHEAST SIDE OF PROPERTY.

Land Ownership Information (If Supplied): JUDY CARR
7 IPSWICH ROAD BOXFORD, MA 01921

Maps submitted with certification and attached to this form

- ☒ USGS topographic map showing location of the vernal pool
- ☒ Assessor's map (or other property map) showing location of pool
- ☐ Compass bearings and distances to the pool from permanent landmarks
- ☒ Aerial photograph/80 or 100 scale topographic map showing location of the pool
- ☐ Professional survey showing location of the pool
- ☐ Sketch map or description of the immediate vicinity of the pool

Documented Biological Indicators Accepted by NHESP

- ☐ Wood Frog (Obligate Amphibian)
- ☒ Mole Salamander (Obligate Amphibian)
- ☒ Fairy Shrimp (Obligate Invertebrate)
- ☐ Facultative Amphibian
- ☒ Facultative Invertebrate
- ☐ Facultative Reptile

The NHESP has not been notified of the presence of rare state-listed wildlife species in this vernal pool habitat

Vernal pools may be protected under the following regulations:

- Massachusetts Wetlands Protection Act Regulations (310 CMR 10.00)
- Massachusetts Surface Water Quality Standards Regulations (314 CMR 4.00)
- Title V (Subsurface Sewage Disposal) Regulations (30 CMR 15.00)
- Forest Cutting Practices Act Regulations (304 CMR 11.00)

Natural Heritage & Endangered Species Program

Route 135, Westborough, MA 01581 Tel: (508) 792-7270 x 200 Fax: (508) 792-7275
An Agency of the Department of Fisheries, Wildlife & Environmental Law Enforcement
<http://www.state.ma.us/dfwele>





Division of Fisheries & Wildlife

Wayne F. MacCallum, *Director*

VERNAL POOLS

What are Vernal Pools?

Vernal pools are temporary bodies of freshwater that provide critical habitat for many vertebrate and invertebrate wildlife species. "Vernal" means spring, and indeed, most vernal pools are filled by spring rains and snowmelt, only to dry up during the hot, dry months of summer. Many vernal pools, though, are filled by the rains of autumn and may persist throughout the winter. Vernal pools are often very small and shallow; vernal pools that support rich communities of amphibians and invertebrates may measure only a few yards across. However, vernal pools of several acres are not rare throughout much of Massachusetts.

Where are Vernal Pools Found?

Vernal pools are common in Massachusetts, probably occurring in almost every town in the state. Vernal pools are found across the landscape, anywhere that small woodland depressions, swales or kettle holes collect spring runoff or intercept seasonally high groundwater tables. Although many people associate vernal pools only with wooded areas, ecologically significant vernal pools are also found in meadows, sand flats, river floodplains, and in large vegetated wetland complexes.

Why are Vernal Pools Valuable?

Vernal pools constitute a unique and increasingly vulnerable type of wetland that is inhabited by many species of wildlife, some of which are totally dependent on vernal pools for their survival. Since vernal pools are temporary bodies of water, they do not support fish populations. The Wood Frog (*Rana sylvatica*), the Eastern Spadefoot Toad (*Scaphiopus holbrookii*) and the four local species of mole salamander (*Ambystoma spp.*) have evolved breeding strategies intolerant of fish predation on their eggs and larvae; the lack of fish populations is essential to the breeding success of these species. Other amphibian species, including the American Toad (*Bufo americanus*), Green Frog (*Rana clamitans*) and the Red-spotted Newt (*Notophthalmus viridescens*), often exploit the fish-free waters of vernal pools but do not depend upon them. Vernal pools also support a rich and diverse invertebrate fauna. Some invertebrate species, such as fairy shrimp (*Eubranchipus spp.*), are also entirely dependent upon vernal pool habitat. Invertebrates are both important predators and prey in vernal pool ecosystems. Vernal pools are an important habitat resource for many species of birds, mammals, reptiles and amphibians.

State-listed species that rely on vernal pools

Species	Status
Blue-spotted Salamander (<i>Ambystoma laterale</i>) ¹	SC
Jefferson's Salamander (<i>A. jeffersonianum</i>) ¹	SC
Marbled Salamander (<i>Ambystoma opacum</i>) ¹	T
Four-toed Salamander (<i>Hemidactylium scutatum</i>) ²	SC
Spade-foot Toad (<i>Scaphiopus holbrookii</i>) ¹	T
Spotted Turtle (<i>Clemmys guttata</i>) ²	SC
Blanding's Turtle (<i>Emydoidea blandingii</i>) ²	T
Wood turtle (<i>Clemmys insculpta</i>) ²	SC

¹ Obligate species require vernal pool habitat for successful reproduction

² Facultative species may use vernal pools during their life cycle but do not require them

³ Status pursuant to the MA Endangered Species Act; T: Threatened, SC: Special Concern

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Are Vernal Pools a Threatened Resource?

Yes! The Massachusetts Wetlands Protection Act only protects vernal pools that have been "certified" by the Division of Fisheries & Wildlife's Natural Heritage & Endangered Species Program (NHESP), or that are proven to exist during the public hearing for a Notice of Intent. Vernal pools are also protected under additional state and federal regulations, but these largely rely on vernal pool certification. Reliance on the official certification program for the protection of these important habitats means that it is crucial to obtain certification for vernal pools. Refer to the NHESP regulatory fact sheet for details of the protection available to vernal pool habitat in Massachusetts.

How Can Vernal Pools be Certified?

The Certification Program depends entirely on volunteer effort and the initiative of interested individuals and organizations. Interested parties should locate potential vernal pools and then:

1. Contact the Massachusetts Natural Heritage & Endangered Species Program (508/792-7270, ext.200) to obtain the "Guidelines for the Certification of Vernal Pool Habitat," along with Vernal Pool Field Observation Forms;
2. Fill out and submit the Field Observation Forms, along with documentation of the physical and biological criteria required by the "Guidelines," and required maps to the NHESP for review. The preferred type of evidence for meeting the biological certification criteria is photographs of breeding Wood Frogs or mole salamanders, or the presence of fairy shrimp. See the "Guidelines" for details.

Following receipt of certification materials, the Natural Heritage & Endangered Species Program assesses the completeness and accuracy of the information and documentation submitted. The NHESP does not field visit pools prior to certification but relies on the presentation of accurate and clear documentation. After it is determined that a vernal pool meets the physical and biological criteria established in the "Guidelines," it is officially certified. The observer, town conservation commission, regional office of the Department of Environmental Protection and the landowner are notified of the certification. The locations of Certified Vernal Pools are plotted on the NHESP's "Estimated Habitats of Rare Wetlands Wildlife and Certified Vernal Pools" on a biennial basis. These maps are sent to the town clerk and to the Conservation Commission, and are available for viewing by the public. The NHESP also produces a statewide Atlas of these maps, reproduced at a reduced scale, which is available at cost.

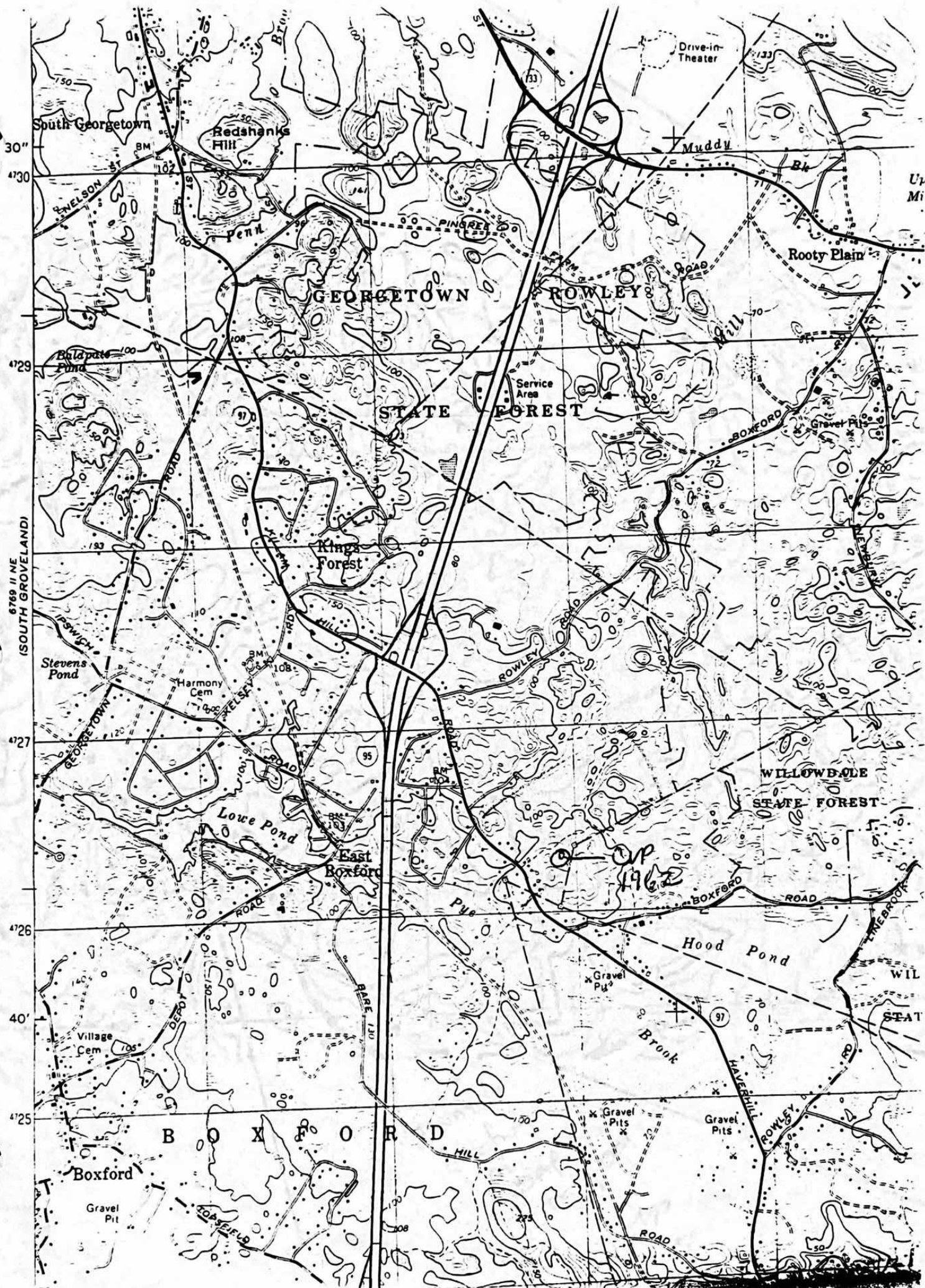
For general information regarding the Wetlands Protection Act, as well as the names and addresses of local conservation commissioners, call the Massachusetts Association of Conservation Commissions, in Belmont, MA. For specific information regarding the regulatory protection afforded certified vernal pools, as well as information on the protection of uncertified vernal pools, contact the regional office of the Department of Environmental Protection.

DEP Northeast Regional Office
203-A Lowell Street
Wilmington, MA 01887
(978) 661-7780

DEP Central Regional Office
627 Main Street
Worcester, MA 01608
(508) 792-7650

DEP Southeast Regional Office
20 Riverside Drive
Lakeville, MA 02347
(508) 946-2810

DEP Western Regional Office
436 Dwight Street
Springfield, MA 01103
(413) 784-1100





approximate
location
of ~~vernal~~
vernal pool

CVP
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